

Prisons (Bihar Amendment) Act, 1956

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State of Bihar - Act

Prisons (Bihar Amendment) Act, 1956

BIHAR

India

Prisons (Bihar Amendment) Act, 1956

Act 31 of 1956

Published on 4 May 1956

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Prisons (Bihar Amendment) Act, 1956

(Bihar Act,

31 of 1956

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Last Updated 31st January, 2020

[Dated 04.05.1956]

An Act to amend the Prisons Act, 1894, in its application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the Seventh Year of the Republic of India as follows: -

1.

Short title.

- This Act may be called the Prisons (Bihar Amendment) Act, 1956.

2.

Amendment of Section 46 of Act IX of 1894.

- In Section 46 of the Prisons Act, 1894 (IX of 1894) (hereinafter referred to as the said Act), -

(i)

clause (12) shall be omitted; and

(ii)

in the proviso, the words "or to whipping" shall be omitted.

3.

Amendment of Section 47 of Act IX of 1894.

- In Section 47 of the said Act' clause (4) shall be omitted.

4.

Amendment of Section 50 of Act IX of 1894.

- In sub-section (1) of Section 50 of the said Act, words "or of whipping" shall be omitted.

5.

Amendment of Section 51 of Act IX of 1894.

- In sub-section (2) of Section 51 of the said Act, the words "and, in the case of the offence for which whipping is awarded, the Superintendent shall record the substance of the evidence of the witnesses, the defence of the prisoner, and the finding with the reasons therefor" shall be omitted.

6.

Repeal of Section 53 of Act IX of 1894.

- Section 53 of the said Act shall be omitted.

7.

Amendment of Section 57 of Act IX of 1894.

- In sub-section (1) of Section 57 of the said Act, for the word "transportation", the word "imprisonment for life" shall be substituted.

8.

Amendment of Section 59 of Act IX of 1894.

- In Section 50 of the said Act. -

(i)

in clause (16), for the word "transportation", the words "imprisonment for life" shall be substituted; and

(ii)

in clause (22), the words "transportation or" shall be omitted.

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